

Request 1 seeks “the exact website page, heading, button, label, etc. Your screen reader could not use [on] Defendant’s website”. There is neither a showing nor an inference that plaintiff has physical copies of any such documents that he has not produced. What defendant really wants is a listing and explanation. That’s not the role of a document request.

Request 3 calls for “documents that prove you have a screen reader”, and details of the product. Plaintiff says, not implausibly, that he has no such documents – receipts, manuals, and so on. Defendant can explore that response at deposition if it likes, but “I don’t have any” means “I don’t have to produce any”. If what defendant really wants is identification of the screen reader plaintiff possesses and uses, a document request isn’t the right way to get that answer.

The Court declines to award sanctions. Although this motion is being denied, it does appear by inference that plaintiff is being less forthcoming than he should be about the details on which he rests his asserted case.

The Court further notes that although plaintiff criticizes defendant’s Separate Statement, plaintiff has filed no responsive Separate Statement as he was required to do.

21. 9:01 AM CASE NUMBER: MSC21-01963

CASE NAME: KNIGHT VS HONDA

***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANT AMERICAN HONDA MOTOR CO., INC.'S FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO**

FILED BY: KNIGHT, MELANIE

TENTATIVE RULING:

Plaintiff moves to compel production of extensive categories of documents concerning safety devices that defendant Honda incorporated into its Vezel model, which was marketed and sold only in Japan. The motion is **denied**.

This is a personal injury case, alleging that plaintiff was hit by a Honda while jaywalking. The claims against Honda center on the allegation that Honda’s vehicle lacked safety features, such as forward collision-avoidance devices. Plaintiff has adduced in discovery that at the time the vehicle was made and sold, Honda incorporated such safety devices in a similar model it was selling in Japan. Plaintiff has also received discovery about the safety technology used on other Honda models.

The substance of this motion was already raised and ruled on by Judge Mockler in a prior motion to compel, which was denied. Plaintiff argues that it now has “new information”, but it offers no convincing argument why that information overcomes the grounds for Judge Mockler’s denial. Moreover, plaintiff waited over a year to file this motion.

In any event, with or without Judge Mockler’s prior ruling, the Court views the present discovery sought as too burdensome and too far afield to warrant compelling discovery. Plaintiff wants to be able to prove at trial that Honda was capable of incorporating the disputed safety equipment in the model at issue, and that it understood the safety value of doing so. The point is a fair one for trial, but plaintiff has already got ample discovery responses (including the very deposition testimony it now

relies on) to seek to carry that point at trial. The bulky details of the incorporation into the Japanese model vehicle will add little if any further probative value.

Honda has not requested sanctions.

Courtroom Clerk's Session

22. 1:30 PM CASE NUMBER: MSC21-02445

CASE NAME: NIST VS FARRELL

ISSUE CONFERENCE WITH SETTLEMENT MENTOR

FILED BY:

TENTATIVE RULING:

All parties and counsel to appear.

Law & Motion

Add On

23. 9:00 AM CASE NUMBER: MSC21-02445

CASE NAME: NIST VS FARRELL

TO BE RELIEVED AS COUNSEL RE: ATTORNEY DEVON M. TURTLE ANDERSON

FILED BY:

TENTATIVE RULING:

Devon Anderson and Skepsis Legal Solutions move to be relieved as counsel for Daniel Jensen. The motion is **granted**, but effective only after conducting today's settlement conference and any follow-on settlement proceedings.

A motion of this kind would typically call for an in-person, in-chambers confidential hearing to consider grounds for withdrawal, so as not to reveal any attorney-client confidences to other parties or the world in general. Here, however, both client and lawyers are in Idaho, and the client has stated his position in writing in a public filing. Accordingly, if this tentative ruling is contested, the Court will allow the attorneys and the client to appear by Zoom, with the caution that their statements and arguments will not be confidential. Mr. Jensen is deemed to have waived any privilege or confidentiality by telling his side of the attorney-client story publicly.